

An Act

ENROLLED HOUSE
BILL NO. 1933

By: Sterling and Provenzano of
the House

and

Weaver, Frix, Jett, and
McIntosh of the Senate

An Act relating to nitrous oxide; creating the Maddix Bias Act; defining term; prohibiting the sale of nitrous oxide to persons under twenty-one; requiring proof of legal age; providing for enforcement; providing penalty; providing for imprisonment; providing exceptions; providing for noncodification; and providing for codification.

SUBJECT: Nitrous oxide

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Maddix Bias Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 465.22 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "nitrous oxide" means any of the following substances: N₂O, dinitrogen monoxide, dinitrogen oxide, nitrogen oxide, or laughing gas.

B. 1. This act prohibits any person to inhale, ingest, or possess with intent to breathe, inhale, or drink any compound, liquid, or chemical containing nitrous oxide, or any similar substance for the purpose of inducing a condition of intoxication or which distorts or disturbs the auditory, visual, or mental processes.

2. It is unlawful for any person to inhale, ingest, possess, buy, sell, or otherwise transfer any chemical substance defined in subsection A of this section for the purpose of inducing or aiding any other person to violate the provisions of paragraph 1 of this subsection.

C. On and after the effective date of this act, violation of subsection B of this section is a misdemeanor with imprisonment up to ninety (90) days or a fine of Five Thousand Dollars (\$5,000.00), or both. The court may require any person to participate in an approved drug rehabilitation program as a condition of probation.

D. Any person who knowingly distributes, sells, purchases, transfers, or possesses more than sixteen (16) grams of nitrous oxide commits a misdemeanor with imprisonment up to ninety (90) days or a fine of Five Thousand Dollars (\$5,000.00), or both. Knowingly distributing, selling, purchasing, transferring, or possessing more than sixteen (16) grams of nitrous oxide shall be known as unlawful distribution of nitrous oxide. For purposes of this subsection, in addition to proving by any other means that nitrous oxide was knowingly possessed, distributed, sold, purchased, or transferred, proof that any person discharged, or aided another in discharging, nitrous oxide to inflate a balloon or any other object suitable for subsequent inhalation creates an inference of the person's knowledge that the nitrous oxide's use was for an unlawful purpose.

E. Additionally, any person twenty-one (21) years of age or older who sells or offers to sell drug paraphernalia to a person less than eighteen (18) years of age is guilty of a misdemeanor punishable by imprisonment for up to one (1) year or a fine of up to Seven Thousand Five Hundred Dollars (\$7,500.00), or both. These provisions would only apply to the selling or offering of an object specifically designed for inhaling nitrous oxide for recreational purposes.

F. Pursuant to this act, the court shall order the suspension of the business license, for a period of up to one (1) year, of a person who knowingly violates the provisions of subsection E of this section after having been previously convicted of a violation of subsection E of this section, unless the owner of the business license can demonstrate a good-faith attempt to prevent illegal sales or deliveries by the owner's employees.

G. This act shall not apply to any person who administers nitrous oxide for the purpose of providing medical or dental care, if administered by a medical or dental practitioner licensed by this state or at the direction or under the supervision of a practitioner licensed by this state.

H. This act does not apply to the sale of nitrous oxide contained in food products for use as a propellant.

I. This act does not apply to the sale, use, or possession of nitrous oxide containing sulfur dioxide used for automotive purposes.

J. This act does not apply to the sale, use, or possession of nitrous oxide used in manufacturing or use in an industrial application.

K. This act does not apply to nitrous oxide cartridges or whipped cream "chargers" purchased exclusively from commercial restaurant supply companies or vendors exclusively to commercial restaurants or bakery businesses that use nitrous oxide cartridges for the sole purpose of producing whipped cream or other culinary uses.

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 20th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____